



AMERICAN FORK CITY COUNCIL
APRIL 30, 2024
REGULAR SESSION MINUTES

Members Present:

Bradley J. Frost	Mayor
Staci Carroll	Council Member
Ryan Hunter	Council Member
Tim Holley	Council Member
Ernie John	Council Member
Clark Taylor	Council Member

Staff Present:

David Bunker	City Administrator
Loralee Miller	Executive Assistant
Terilyn Lurker	City Recorder
Patrick O'Brien	Development Services Director
Aaron Brems	Fire Chief
George Schade	IT Director
Cherylyn Egnor	Legal Counsel
Cameron Paul	Police Chief

Also present: Nathan Sheranian, Tim Hunt, Jack Young, Travis Morgan, Nick Merrill, Joshua James, Roger Gagon, Terry Mills, Stacy Carter, Jarrett Sorensen, Chery Morgan, Mindi Lovell, Ryan Davis, Ken Berg, and seven additional citizens.

The American Fork City Council met in a regular session on Tuesday, April 30, 2024, in the American Fork City Hall, 31 North Church Street, commencing at 7:00 p.m.

REGULAR SESSION

1. Pledge of Allegiance; Invocation by Council Member Hunter; roll call.
Mayor Frost welcomed everyone to the meeting. Those present recited the Pledge of Allegiance and the invocation was offered by Council Member Hunter. Roll call was taken.
2. Twenty-minute public comment period - limited to two minutes per person.
Mayor Frost stated there is 20 minutes set aside for public comment. As you are called up, please introduce yourself by stating your name for the public record. You will be given up to two minutes to speak. The council does not engage in a discussion during the comment period but may arrange for a staff member to communicate with you later.

Nathan Sheranian. Mr. Sheranian read from an email he previously sent to the city

regarding his daughter who got hit by a car at 1120 North in November 2023. He wanted to bring to the council's attention the need for crosswalks on 1120 North. Currently, there are only two crosswalk options that are quite a distance apart; the result is that people frequently jaywalk. Mr. Sheranian noted there was a crossing guard at 150 West 1120 North, but it is not effective. He asked that they consider additional crosswalk options, and he recommended two crosswalks at 350 West and 670 West, with a button kids can push for flashing lights.

Tim Hunt. Mr. Hunt stated he lives near the construction on 200 South and has noticed that since the road was shut down, they haven't done much work. He indicated they have done most of the underground work and started the curb and gutter, but no one has worked lately. Mr. Hunt questioned why it would take so long to complete the project and asked if there get done any faster. He wanted some follow-up on what still needed to be done. Mayor Frost indicated staff would contact him.

Jack Young. Mr. Young stated he owned property at 279 North 1100 East and was there to express his support for the THN 2 Annexation. Mr. Young explained that his family was approached in October 2022 by Premier Family Medical, at which time the property was re-zoned. Shortly after that, the first annexation petition was rejected, one reason being the applicants were not the owner of the property. A few months later, the applicant tried again but was rejected again because the city wanted all the property included. In the meantime, he has been approached by several different companies about the purchase of his property, but it has fallen through. Mr. Young stated he hoped the council would listen with an open mind and approve the petition.

Travis Morgan. Mr. Morgan asked those in attendance to raise their hands if they were present regarding the construction work on 200 South. He stated two council members and Mr. Bunker went down to meet with the residents, which they were grateful for. He stated the roadwork on 200 South has caused a lot of problems for the residents in the area. Mr. Morgan commented that a rumor has gone around that some of the council members have not even been on the south side of town, but he hoped it was just a rumor. He asked the council to drive down there if they haven't been there recently. Mr. Morgan stated they felt that this problem should be the council's top priority until construction is complete. Many of the residents feel the city should be doing everything possible to alleviate the burdens that have been caused by what they consider to be a very late project. They hoped their needs would be among the city's most pressing needs going forward until the residents have a decent quality of life down there. They felt the project should be completed before July 16th and suggested extra shifts or overtime to finish the project quicker. Mr. Morgan also asked that they fill the potholes, particularly along the side of the road. Additionally, he asked for better parking for the residents and for the potholes to be filled in the road and along the side of the road. Mr. Morgan stated he did not think the city should be in the business of altering the behavior when it comes to having cars, and they should never say there should be minimal parking to get rid of their cars.

Nick Merrill. Mr. Merrill stated he was grateful for what they have done so far on 200 South and he was looking forward to the completion of the sidewalks and protected bike

lanes. He expressed his gratitude to Derric Rykert and Jason Thomson, who helped install bike racks at some businesses on Main Street. He expressed his appreciation that the city was allowing them other options for transportation. As the streets are reworked and repaved over the next 20 years, residents will see things they haven't seen before. He invited City leadership to take a bike ride with him in Provo to see how they have implemented their bike and infrastructure.

Roger Gagon. Mr. Gagon stated he was also there with the group on the 200 South construction project. His concerns dealt with safety, signage, and oversight. He has lived here for 30 years, and he has noticed that a lot of construction projects seem to begin and then the project goes on and on with no progress being made. That seemed to be the issue in his area as well as near Rotary Park. He questioned if there was a lack of oversight. He noted there are detours on roads that seem to be fine. Mr. Gagon shared an experience where a construction truck backed into his vehicle, when there were no signs indicating where exactly the construction zone was. He made a left hand turn and immediately there was a dump truck that backed into him. There was no visual signage saying he couldn't turn left. Had the dump truck not stopped when he did, he could have been crushed. When the driver was questioned why he didn't look, he said it was a construction zone. This is the experience that residents have seen, and he hoped for oversight on the construction project with police possibly monitoring the construction sites to make sure appropriate signs are in place.

Terry Mills. Mr. Mills was there to represent the residents around the THN 2 Annexation property. The neighbors are not worried about the property being developed, but they are concerned with the size and height of the building. They are opposed to having a building like what is on the southeast corner of 300 North 1100 East. Mr. Mills stated the neighborhood is opposed to a building that would take away their view and take away their privacy with a large building. They could all come in and say the same thing, but he wanted to be on the record that as neighbors they encourage development but be sensitive to the needs of the residents of that neighborhood.

Stacy Carter. Ms. Carter stated she wants information on 200 South. She questioned if they could get updates on the construction, other than knowing what is happening as they see it. Do they know when the project is expected to be completed? She noted they do see updates on Facebook and on the app, but questioned if they would get information directly to them so they know what is going on. Ms. Carter also suggested they get a sign that doesn't look like every other construction sign, as no one reads those signs any longer as they have been there for so long.

Mayor Frost stated they use social media a lot to communicate, as well as other forums regularly utilized by the city. He noted if there was one person in the neighborhood, they could possibly give updates. Mr. Bunker stated there is a list of capital improvement projects on the city's website that gives regular updates.

Jared Sorenson. Mr. Sorenson stated he lives at 570 West and 200 South. His main concern is the signage. If there was any emergency, he had no idea how everyone would get out of there. He stated the LDS Church owns property down there, and questioned if

they could use part of that property for another access to the area.

Mayor Frost stated he did not want the residents on the south side of town to feel neglected or that they weren't important. That area has built out quickly. The topic of taking someone's property for a road or a corner is a delicate issue. The city would be happy to talk to property owners on 200 South to help, but the city was using the tools they have. He has been here for 57 years, but the investment on the south side is unprecedented, but they do need patience. They have the engineering done and construction for the rest of 200 South was coming. He does understand their frustration, but he asked for patience. In the end, there would be a great roadwork grid that would have good connectivity. Mayor Frost stated that not everything happens right away, and a lot of good resources have been used to make sure they can improve the area. The city does feel their pain, and there will be more to come, but the city was working on it. They are going to continue to work with property owners to minimize the effects of construction. They knew the road needed to go through and they wanted to make it better for them. He would be willing to meet with the residents where they could talk about this and other items that will take place on the south side of town. In the end, they are confident this will be a great place.

3. City Administrator's Report

David Bunker reported there will be a pickleball tournament called the "Battle of the Forks" with Spanish Fork on May 11th. This was set up between the Chambers of Commerce of American Fork and Salem/Spanish Fork. The tournament in American Fork will take place on May 11th, and the top four teams will go to Spanish Fork on the 18th. He encouraged the public to sign up for a team. In the future there may be other events, but this year is pickleball.

Mr. Bunker stated the Annual Memorial Day Breakfast put on by the Fire Department will be held on May 27th. It starts at 6 a.m. and goes on until 10 a.m. The public is invited to participate, with tickets being available in advance or the day of.

4. Council Reports

Council Member Hunter stated he grew up on the south side of town, and they are mindful of the challenges those residents are facing. He knows it will be painful, but it would be done the right way. A water line had to be placed, which takes money and time to design, and no one would have been happy if they had completed the road and then torn it up for a water line. The city was not dismissive in the least, and safety is a priority. He hoped no one felt they weren't important, and they stood together.

Council Member Holley seconded Council Member Hunter's comments. He stated he went down with Council Member John and Mr. Bunker. He appreciated all that Mr. Morgan has done to coordinate things and bring the community together to make them aware of the issue. He reiterated that this was top of their minds. Council Member Holley reported on the Arbor Day celebration was held last week, which was an amazing event where 16 trees were planted. It was a great experience, and great to get the community involved. The Beautification Container Gardening Class will be on Monday at the library at 7 p.m. Council Member Holley commented on the situation in Charlotte, North

Carolina, where four law enforcement personnel killed. He expressed his appreciation to our emergency personnel and all they do for us.

Council Member John reported that last week, the annual meeting of the Provo River Water Users Association gave a report to the members. At Deer Creek, they are building an inlet structure which will help with the safety of the dam. This was a huge project, but it will not affect the water allocation the city receives. He reported that Deer Creek Reservoir was at 96% capacity, but they still needed to encourage water conservation.

Council Member Carroll stated she was not in the habit of replying to comments made during the public comment, but she wanted to express some thoughts. She noted that she has been down to the south side of town multiple times, but she has not met with the residents; she would be happy to meet with them. She has been very concerned with 200 South and has talked with several people; it is an ongoing project that will be going on for a while. With 1120 North, the council has all felt that crosswalks are important and asked that they expedite that. Lastly, Council Member Carroll reported that she appreciated the city helping the Children's Justice Center get ready for their open house. This will be a huge asset to the city, and she hoped the kinks can be ironed out.

Council Member Taylor stated that he has kids that live on the south side of town, and he understands it is a mess. When you are living in the middle of it, it feels like no one is paying intention and that work isn't getting done; he understands. The city does get their frustrations. He was confident they were working to make things happen, but maybe increased oversight can take place. Everything has changed for them, and it does take extra time, and it was a sacrifice, but the residents needed to know that the city was aware of them and their challenges. He gets the frustrations of the citizens, and he was grateful they came to express their frustrations. He hoped they could get this project done as quickly as possible. Council Member Taylor wanted to give a shout out to the businesses that donate money and time to the city, noting that the trees and donations will help improve the area. He noted that Doug Smith had 14 employees at the Arbor Day event to help. The trees planted will improve the area.

5. Mayor's Report

Mayor Frost had a great time at the Arbor Day event. The kids were having fun and he enjoyed it. It was well organized. Mayor Frost also addressed the Children's Justice Center. The building is a 150-year-old home next to the library that has been retrofitted for the aid and benefit of abused children. This is a place that feels like a home where kids come after traumatic events. There are some things in life that are out of our control, but it was in their control to be a resource. This was a collaborative effort with the county, state, and city. He was blown away by how beautiful and peaceful it was.

COMMON CONSENT AGENDA

(*Common Consent* is that class of Council action that requires no further discussion or which is routine in nature. All items on the Common Consent Agenda are adopted by a single motion unless removed from the Common Consent Agenda.)

1. Approval of the April 9, 2024, city council minutes.

2. Consideration regarding authorization to release the Improvements Durability Retainer of \$81,971.96 for Stonecreek Plat D, located at 290 West 700 South.
3. Consideration regarding authorization to release the Improvements Durability Retainer of \$197,968.76 for Stonecreek Plat E, located at 425 West 720 South .
4. Acceptance of an easement from John Ragan along the property located at 425 N 900 E, American Fork, Utah 84003.
5. Approval of a Performance-in-Lieu Agreement with North Pointe Building "F", LLC regarding actual construction in lieu of providing an Improvements Construction Guarantee associated with North Pointe Business Park Building "F".
6. Approval of an alcoholic beverage license for GBN Enterprises of American Fork, DBA Nori Sushi Bar and Grill, located at 821 North West State Road.
7. Ratification of city payments (April 3, 2024, to April 23, 2024) and approval of purchase requests over \$50,000.

Council Member Taylor moved to approve the common consent agenda. Council Member John seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ernie John, Council Member
YES:	Carroll, Hunter, Holley, John, Taylor

ACTION ITEMS

1. Review and action on an ordinance approving the Skidmore Annexation, consisting of 7.552 acres and located at approximately 100 East 1500 South, including the ordinance of annexation, annexation agreement, road dedication plats, and placement of the property in the Planned Industrial (PI-1) zone.
Council Member Carroll questioned if this property was within the area the council has designated as Planned Industrial. It was noted this was within that area, and the land use was changed last year.

Council Member Carroll moved to adopt Ordinance No. 2024-04-16 approving the Skidmore Annexation, consisting of 7.552 acres and located at approximately 100 East 1500 South, including the ordinance of annexation, annexation agreement, road dedication plats, and placement of the property in the Planned Industrial (PI-1) zone, subject to any conditions found in the staff report. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Ryan Hunter, Council Member
YES:	Carroll, Hunter, Holley, John, Taylor

2. Review and action on a resolution to accept/deny the THN 2 Annexation petition to annex, consisting of 1.308 acres at 1054 East 300 North.
Patrick O'Brien explained the annexation process is a multi-step process, and this is the first step that involves the council. This is just accepting the petition for annexation, but it does not give any approval for development. He noted the annexation agreement is where any development issues are worked through, and the details are agreed upon. After the annexation, the property would move forward with development which includes site

plans and final plat.

Council Member Holley clarified that this was just bringing in the property to the city and not approving any development. He questioned if there had been any discussions around development. Mr. O'Brien explained that with this specific petition, there have not been development discussions; however, a previous petition did have a concept. He stated that this does need to go through the entire approval process for development so they can make sure all city development requirements are met.

Council Member Holley questioned if they have ever opted to not annex property because of what the property owner might do. Ms. Egner explained this is just the very beginning and only the acceptance of the petition to move forward to see if an agreement can be reached for annexing the property. The city still has the option to annex or not to annex. It was noted that some annexation agreements in the past have outlined density and such for what would be developed on the property.

Council Member Taylor asked if they could stipulate conditions at the time of the annexation agreement such as lighting, height, etc. so both the developer and the neighbors could be happy. Ms. Enger explained there are issues with property rights they need to take into consideration, and they will need to have further conversation with that.

Council Member Carroll stated that she sympathizes with the applicant and would love to see them annex if they had parameters for what was to be developed on the property.

It was noted this annexation did include the entire island of unincorporated property at that location.

Council Member Holley moved to adopt Resolution No. 2024-04-12R accepting the petition to annex the THN 2 Annexation, consisting of 1.308 acres and located at 1054 East 300 North. Council Member John seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Tim Holley, Council Member
SECONDER:	Ernie John, Council Member
YES:	Carroll, Hunter, Holley, John, Taylor

Mayor Frost stated that the previous discussions that have taken place have shown what the council wishes to see for development.

3. Review and action of a Pioneering Agreement for Deer Park, LLC. for system improvements along 1100 South of the recently approved Deer Park subdivision. **Council Member Hunter moved to approve the pioneering agreement with Deer Park Lot 3 for system improvements along 1100 South. Council Member Taylor seconded the motion.**

Council Member John had asked for an explanation from the Public Works Director, and he appreciated this was not money out of the city's pocket.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Ryan Hunter, Council Member
SECONDER:	Clark Taylor, Council Member
YES:	Carroll, Hunter, Holley, John, Taylor

4. Review and action on an ordinance approving a Code Text Amendment, known as Detailed Drawings, of the American Fork City Municipal Code. Creating Section 15.01.1531, the Code Text Amendment plans to provide new cross sections for roadways throughout the City.

Mayor Frost explained this was discussed at previous work sessions.

Council Member Taylor expressed appreciation for the detailed Planning Commission minutes.

Council Member Hunter moved to adopt Ordinance No. 2024-04-17 creating Section 15.01.1531, titled Detail Drawings, related to cross sections in the TOD area. Council Member Taylor seconded the motion. Voting was as follows:

Council Member Hunter commented that at times it feels like this is a quick process, but the council has spent countless hours talking about this.

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Ryan Hunter, Council Member
SECONDER:	Clark Taylor, Council Member
YES:	Carroll, Hunter, Holley, John, Taylor

5. Review and action on a contract with Quicksilver Concrete, Inc. for concrete services at various locations throughout the City.

Council Member John stated he met with Mr. Bunker regarding the 50/50 sidewalk replacement plan, which he thought was a great opportunity the residents weren't taking advantage of. He appreciated staff's willingness to meet with him regarding sidewalk issues.

Council Member Taylor moved to approve the agreement for concrete services as presented and authorize the City to enter into the contract with Quicksilver Concrete, Inc. Council Member John seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ernie John, Council Member
YES:	Carroll, Hunter, Holley, John, Taylor

6. Review and action on an ordinance approving a Code Text Amendment, known as TOD Parking Requirements, of the American Fork City Municipal Code. Amending Section 17.4.608 (Section 6 Lot Plans)(Table 6F – Parking Requirements), the Code Text Amendment plans to increase the parking requirement for LT-8 and LT-9.

Mayor Frost stated this was getting out in front of a concern the council already had.

Council Member Hunter commented on a concern stated earlier in the meeting of the residents getting out of the area in an emergency. His concern was getting emergency personnel into the area; they needed to get an ambulance or fire truck down there. It may make parking harder for the time being, but they need to be able to get emergency vehicles down the roads.

Council Member Carroll stated she would vote for this tonight as there is evidence that changes need to be made. However, she pointed out that when they add more parking, it moves the buildings farther apart. If they are trying to create a walkabout area, they are making things farther apart and people are less likely to walk. She didn't want to change people's habits or change their lifestyles; however, they are limiting lifestyle options when they don't create a space that is functionally walkable. She does agree there are problems, but they are creating a space that is less walkable when they put in more parking.

Council Member John stated that parking was a balance, but he questioned if they were limited by the State. Mr. O'Brien stated the State does have a requirement that cities create housing that will promote moderate incoming housing and reduced parking. Looking at best practice, it is at 1 to 1.5 stalls. Mr. O'Brien stated he was not personally in favor of going higher and hoped that in the future the culture shift would take place and they could reduce the number again.

Council Member John stated that he and Council Member Holley drove around with the residents. He would like to back it down, but today they need this to accommodate what is down there now.

Mr. O'Brien explained another challenge is the parking requirement is per unit, not per room. There are sub-leases that make parking challenging.

Council Member Hunter stated there are green spaces that happen in parking structures, but they can't ignore the fact that they have a problem now.

Council Member Holley asked if developers could borrow or buy parking from other units. Mr. O'Brien explained if the other development has excess stalls and is adjacent to the property and not across the street, they could have a shared parking agreement.

Council Member Taylor commented that at the ULCT conference, one suggestion was made that the next time the state legislatures are down, they should take them down on a fire truck so they could see what their state mandates cause. Council Member Taylor stated that Utah is quickly becoming a place where affordable housing is out of control, and he was not sure if people are moving there because they want that lifestyle or because that is all they can afford. He loves walkable community ideas, but he wondered how much is based on affordability. Another is residents having a cavalier attitude about what was or was not allowed. They have to weigh all the options and come up with an equitable solution.

Council Member John moved to adopt Ordinance No. 2024-04-18 amending Section 17.4.608 (Section 6 Lot Plans)(Table 6F - Parking Requirements), titled TOD Parking Requirements, relating to increasing the parking requirement for LT-8 and LT-9. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Ernie John, Council Member
SECONDER:	Clark Taylor, Council Member
YES:	Carroll, Hunter, Holley, John, Taylor

7. Review and action on a resolution approving an amendment to the American Fork City General Plan, amending the Moderate-Income Housing Plan, to update the Implementation Strategy.

Mr. O'Brien explained the plan has a timeline for completion, which is being updated due to changes in the legislation and different issues they have run into. He did send this to the program manager who will be reviewing the annual report, and she had no issues.

Council Member Hunter moved to adopt Resolution No. 2024-05-13R approving the General Plan Amendment to the American Fork City General Plan, amending the Moderate-Income Housing Plan to update the Implementation Strategy and providing an effective date. Council Member Carroll seconded the motion.

Council Member Carroll noted that ironically, included in the plan was to reducing the parking requirements.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Ryan Hunter, Council Member
SECONDER:	Staci Carroll, Council Member
YES:	Carroll, Hunter, Holley, John, Taylor

8. Consideration and action to enter into a closed session to discuss items described in Utah State Code 52-4-204 and 52-4-205.

Mayor Frost stated the closed session was being held to discuss the purchase of real estate and pending litigation. The council would meet downstairs in a work room for the closed session. At the end of the closed session, they would re-convene and adjourn the council meeting from that location.

Council Member Taylor moved to enter into a closed session at 8:20 p.m. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ryan Hunter, Council Member
YES:	Carroll, Hunter, Holley, John, Taylor

The City Council entered into a closed session to discuss the purchase of real property and pending litigation at 8:29 p.m. Those present included Mayor Frost, Council Member Carroll, Council Member Holley, Council Member Hunter, Council Member

John and Council Member Taylor. Also present were City Administrator David Bunker, City Attorney Cherylyn Egner, and City Recorder Terilyn Lurker.

The purchase of real estate and pending litigation was discussed, and audio recorded as required by law.

Council Member Taylor moved to return to the regular session at 9:24 p.m. Council Member Hunter seconded the motion. All were in favor.

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ryan Hunter, Council Member
YES:	Carroll, Hunter, Holley, John, Taylor

9. Adjournment.

Council Member Taylor moved to adjourn the meeting. Council Member Hunter seconded the motion. All were in favor.

The meeting was adjourned at 9:25 p.m.



Terilyn Lurker, City Recorder